

Multiple Choice (10 marks)

1. Are there any limits to the application of article 103 of the UN Charter?
 - (a) No, there are no limits to article 103
 - (b) Yes, Article 103 cannot trump multilateral treaties
 - (c) Yes, article 103 of the UN Charter cannot trump jus cogens norms
 - (d) Yes, when a case is submitted to the ICJ, article 103 ceases to have any effect
2. Which of the following purposes does the 'internal point of view' play in Hart's concept of law?
 - (a) It distinguishes social rules from mere group habits.
 - (b) It defines the judicial function.
 - (c) It illustrates the authority of the legislature.
 - (d) It stresses the relationship between law and justice.
3. What is the relationship between the formal sources of international law?
 - (a) There is no hierarchy between the formal sources of international law
 - (b) Treaties supersede custom
 - (c) Custom supersedes treaties
 - (d) General Principles of Law supersede both custom and treaties
4. What does it mean for a State to be sovereign?
 - (a) Sovereignty means being recognised by all other States
 - (b) Sovereignty means to be able to enter into treaties and join the UN
 - (c) Sovereignty means freedom to determine one's own affairs without external interference
 - (d) Sovereignty means possessing the right to defend oneself
5. What is the purpose of universal jurisdiction?
 - (a) Its aim is to establish certain offences as universal
 - (b) Its aim is to deter the commission of certain international crimes
 - (c) Its aim is to provide jurisdiction to all States in respect of particular crimes
 - (d) Its aim is to provide jurisdiction to all States in respect of all international crimes

True / False (10 marks)

Answer True or False

6. True or False: Legal positivism regards morals and law as inseparable components of a legal system.
7. True or False: The Social Fact Thesis asserts that legal systems are entirely independent of social forces and influences.
8. True or False: Social and economic rights are recognized as first generation rights alongside civil and political rights.
9. True or False: The concept of punishment is universally accepted and does not require a value-neutral definition.
10. True or False: Hobbes believed that peace can only be achieved through the establishment of laws and governance.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the various methods of peaceful settlement of disputes in international law. Is there a hierarchy among these methods, and what factors influence the choice of method by disputing States?
12. Discuss the principle of 'pacta sunt servanda' in the context of treaty law, analyzing its significance and implications for the adherence to treaty obligations by parties involved.

End of Paper